

BSA 2023

Bharatiya Sakshya Adhiniyam, 2023

Bharatiya Sakshya Adhiniyam (BSA), 2023

User Query :

A person has been sending me WhatsApp messages demanding ₹2 lakh and threatening to physically harm me and damage my business if I do not pay. The person has also sent photographs of my home and family members to show that they know where I live. I have saved the messages, screenshots and call recordings. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 12/Bharatiya Sakshya Adhiniyam (BSA), 2023

Prepared by : NyaySahayak

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NyaySahayak

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APPLICABLE SECTIONS

Section 61 — Electronic or digital record

WhatsApp messages, images and recordings are electronic/digital records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant to proving messages, screenshots and call recordings.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 Sections 61-63 are the principal electronic-evidence provisions.

✓ STRENGTHS & RIGHTS

1 Multiple preserved forms of communication can corroborate the demand and threats.

✗ RISKS & OBLIGATIONS

1 Do not assign separate BSA section numbers for 'audio' or 'photographs' unless the actual statutory provision supports that description.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Retain originals, metadata and device/source information.

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